HIGH COURT OF DELHI

JUDICIAL APPELLATE JURISDICTION

CASE NO: W.P. (Crl.) No. 310 of 2021 (YEAR: 2021)

CORAM: D.N. PATEL, JASMEET SINGH

Foundation for Independent Journalism
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Information Technology Act, 2000
Sections:	Section 87 IT Act, IT Rules 2021

JUDICIAL HEADNOTE & SUMMARY

Examined the constitutional validity of Part III of the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 regarding digital news publishers.

RATIO DECIDENDI

The Court held that: Examined the constitutional validity of Part III of the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 regarding digital news publishers. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Foundation for Independent Journalism v. Union of India (W.P. (Crl.) No. 310 of 2021) were adjudicated before the High Court of Delhi. The matter arose out of claims and contentions concerning Information Technology Act, 2000, particularly Section 87 IT Act, IT Rules 2021. Examined the constitutional validity of Part III of the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 regarding digital news publishers.

OPERATIVE ORDER

ORDER: Decided